

Court No. - 29

Case :- WRIT - C No. - 33408 of 2021

Petitioner :- Sadhna Rai

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Prashant Rai, Rajiv Gupta

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

Sri Prashant Rai, learned counsel for the petitioner, Sri Udit Chandra, learned counsel for respondents No. 1 & 2 and Sri Ankur Tondon, learned counsel for respondent No.3.

According to the petitioner exorbitant bill has been raised by respondents No. 1 & 2 and his electricity supply has also been disconnected.

Learned counsel for the petitioner submits that he is required to pay at least Rs.7,83,705/- to respondents No. 1 & 2 but on account of adverse COVID-19 condition, he suffered huge financial loss and, therefore, he could not pay the said amount. He further submits that the petitioner would pay this amount within three weeks and for remaining amount, respondents be directed to issue fresh demand letter so that within further two months he may clear the entire dues.

Learned counsel for the respondents No.1 & 2 fairly submits that in the eventuality of petitioner depositing Rs.7,83,705/-, his electricity connection would be restored and for remaining amount a fresh demand letter would be issued to the petitioner.

Learned counsel for the respondent No.3 submits that the petitioner may file appropriate application before respondent No.2 under Clause 6.5 Electricity Supply Code, 2005 and in turn appropriate order would be passed.

Considering the above submissions made by the parties, the present petition is **disposed of** directing the petitioner to deposit Rs.7,83,705/- within three weeks from today.

In the eventuality of doing so, the electricity connection of the petitioner would be restored by the department. However, for the remaining amount, petitioner may file appropriate application before respondent No.2 who in turn may pass appropriate order in accordance with law.

Order Date :- 15.12.2021

Vandana